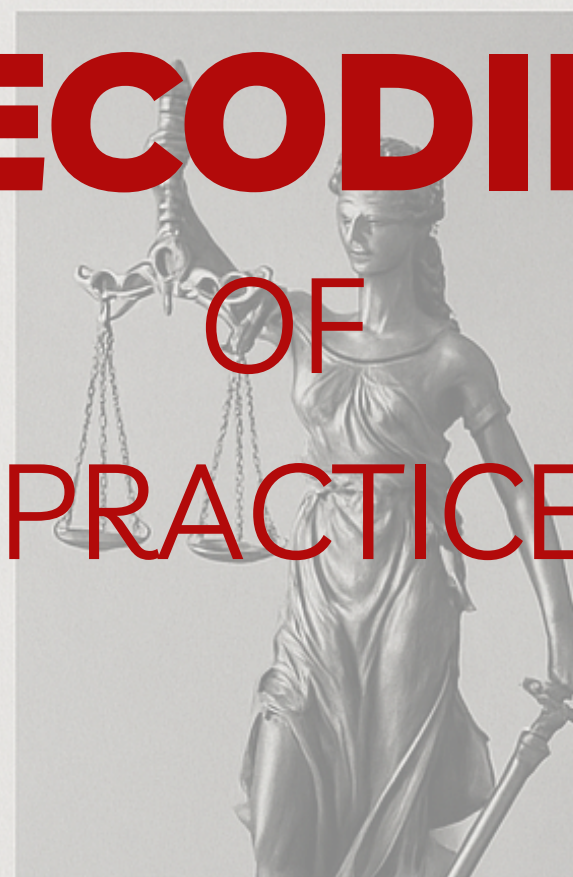




VLS Law
Academy



DECODING OF PRACTICE



+91-9500207811
Anna Nagar West, Chennai
www.vlslawacademy

MODULE – 1 : CONSTITUTIONAL LAWS AND PRACTICE

Unit-I : Basic Concepts & Terminology

Theoretical Concepts related to Indian Constitution (Doctrines & Principles) - Fundamental Rights – Directive Principles of State Policy – Fundamental Duties – Union Executive (President of India / Vice-President of India / Prime Minister of India and his Council of Ministers) – Union Legislature (Parliament) – Union Judiciary (Supreme Court) – State Executive (Governor of State / Chief Minister and his Council of Ministers) – State Legislature (State Legislative Assembly and State Legislative Council) – High Courts in the State – Subordinate Courts – Relation between The Union and the State (Central Government and State Government) – Emergency Provisions (Article 352, Article 356 and Article 360) – amendment of the Constitution (Article 368) – The Panchayats and Municipalities – Schedules of the Indian Consitution.

Unit-II : Writ Petitions based on Madras High Court Writ Rules 2021

Power of High Courts to issue certain writs under Article 226 of Indian Constitution - Salient Feature of the Madras High Court Writ Rules, 2021 – Institution of Proceedings of writ petitions – Form of Writ Petitions (Habeas Corpus Petition / Mandamus Petition / prohibition Petition / Quo-Warranto Petition – Certiorari Petition – Certiorarified Mandamus Petition) & Writ Miscellaneous Petitions - Posting of Single Bench Writ Petitions – Posting of Division Bench Writ Petitions – Categorisation of Writ Petitions – Public Interest Litigations -

Unit-III : Election Petitions

- Election Petitions (Election Disputes related to MLA, MLC, Rajya Sabha, Lok Sabha, Panchayats & Municipalities)

Unit-IV : Original Jurisdiction Matters – Supreme Court

- Disputes related to Central Government Vs State Government, State Government Vs State Government, Group of State Government Vs Central Government.

Unit-V : Special Leave Jurisdiction – Supreme Court

- Special Leave Petition before Supreme Court

Unit-VI : Appellate Jurisdiction of High Courts and Supreme Court

- appeals before Supreme Court (Civil & Criminal)
- Appeals before High Courts (Civil & Criminal)

MODULE – 2 : CIVIL PROCEDURE AND CIVIL TRIAL

Unit – I (Basics of Civil Procedure Code)

General and Statutory Notices (Legal Notice) - Important sections of Civil Procedure Code – Stay of Suit – Res Judicata – Objections to Jurisdiction – Civil Suits Filing – Presentation of Complaint – Written Statement – Set-Off & Counter Claim – Misjoinder and non-joinder of parties – Service of Summons – Substituted service – Striking of Pleadings – Amendment of Pleadings – To set aside ex-parte order and Judgments – settlement outside the Court – Disclosure and discovery of documents – Discovery by interrogatories – Abatement of Suit – To bring on record legal representative of deceased plaintiff and defendant – To set aside abatement – Inherent Powers of Civil Court – Interest – Costs – Incidental Proceedings – Supplemental Proceedings – Memorandum of Appeal – Cross-Objection (Cross Appeal) – to produce additional evidence in Appellate Court – Appeals from Orders – Appeals from Appellate Decrees – Reference – Review Petitions – Lodging of Caveat –

Unit – II (Basics of Civil Trial)

Framing of Issues – Condone the delay in filing documents – Notice to admit documents – Notice to produce documents – Original documents to be produced at or before the settlement of issues – Return of admitted documents – Examination in chief affidavit – To recall and examine a witness – Application for the appointment of Commissioner to examine witness – Commissions to make local investigations – Court Guardian – Appointment of receiver –

Unit – III (Execution Proceedings)

Application for execution of Decree – Transferee Court – Powers of the Executing Court – Execution against Property – Execution against the person of the Judgment Debtor – Attachment of movable property in the hands of Garnishee – Attachment of immovable property – Process for execution – Claim Petition – Sale of Property – Proclamation of Sale – time of Sale – Adjournment of Sale – Stay of Sale – Adjournment of stoppage of sale – Application to set aside sale on the ground of irregularity or fraud – confirmation of Sale – Rateable Distributions – Garnishee Order –

Unit – IV (Types of Suits)

Summary Suit – Injunction Suits – Suits by or against Government – Inter-Pleader Suits – Suits by Indigent Persons – Withdrawal of Suit – Compromise of Suit – Suits by or against Government – Suits by or Against Minors and Lunatics – Suits Relating to Public Trust – Suits Relating to Public Nuisance – Suits by or Against Partnership Firms – Suits by and Against Corporations – Suits by or Against Soldiers, Sailors and Airmen – Suits by or

Against Partnership Firms - Suits by and Against Aliens - Suits by or Against Foreign Rulers - Mortgage Suit - Suits Involving questions of Constitutional Interpretation or Validity of Statutory Instruments

Unit – V (civil Rules of Practice and Circular Orders)

Form of Proceedings – Form of Complaints – Recognised Agents and Pleaders – Form of Vakalat – Presentation of proceedings to the court – Posting of cases – Adjournments – Interlocutory proceedings - Affidavit – Original Petition – Issue of Summons or Notice – Return of service of process – Trial of Suits – First hearing – Interrogatories - Issues – Production of records – Exhibits – return of Documents – Incidental Proceedings – Application for commission – Return of commission – Form of decree and judgment – Application for Certified copies – Copying charges – Execution application – Attachment – Claims to attached property – Realization of attached property – Sale of attached property – General rules about sale of property under order of court - Forms under Civil Procedure Code

MODULE – 3 : CRIMINAL PROCEDURE AND CRIMINAL TRIAL

Unit – I (Basics of New Criminal Procedure Code - BNSS)

Definitions and Classifications of Offences – Cognizable and Non-Cognizable Offences – Bailable and Non-Bailable Offences –Compoundable Offences and Non-Compoundable Offences – Discharge and Acquittal - Classification of Criminal Cases (Summons Cases and Warrant Cases) – First Information Report and Complaint – Investigation, Inquiry and trial – Police Report – Charge – Bail – Bail Bond – Criminal Courts and Offices – Classes of Criminal Courts (Court of Session, Chief Judicial Magistrate, Judicial Magistrates, Executive Magistrates) – Directorate of Prosecution (Public Prosecutors and Assistant Public Prosecutors) - Arrest – Mode of Arrest – Rights of Arrested person – Guidelines for arrest – Process to Compel Appearance – Proclamation and Attachment – Proclaimed offender – Process to compel production of things – Search warrant – Information to Police and their powers to Investigate – Zero FIR – Information in Cognizable cases and non-cognizable cases – Commencement of Investigation – Case Diary (Police Diary) – Report of Police Officer on completion of Investigation (Charge sheet) – Inquest Report

Unit – II (Basics of Criminal Trial)

Jurisdiction of the Criminal Court in Inquiries and Trials – Complaints to Magistrate – Commencement of proceedings before Magistrate (Cognizance of offence by Magistrate) – Trial of summons cases by Magistrate – Trial of Warrant cases by Magistrate – Trial before a Court of Session – Disposal of Criminal cases without full trial (tender of Pardon, Withdrawal of Complaint, Compounding of offences, Withdrawal from prosecution, Criminal

Proceedings barred by Limitation, Autrefois acquit and Autrefois Convict) – Plea Bargaining – Compensation in Criminal cases – Appeals and Revision petitions – Application for Maintenance for Wife, Children and Parents

Unit – III (Criminal Rules of Practice, 2019)

Receipt of First Information Report and Occurrence Report – Procedure for arresting accused already in custody – Recording of Dying declaration – Test Identification Parade – Recording of Confessions – Recording of Statement of victim / witness – bail in non-bailable cases – Verification of solvency of sureties – filing of final report by police and complaint by other investigation agencies (CBI, Enforcement Directorate, Vigilance and Anti-corruption) – Cognizance of the offence – Appearance of Advocates – Summons and Warrants – Cases of Absconding accused – Committal proceedings – Affidavits – Examination of witness on oath and affirmations – Deposition of a witness – Examination of witness – Marking of exhibits – Procedure for examination of child victim – Recording of evidence through video conferencing – General instructions to all Criminal Courts (Submission of Reports, records etc., to CJM by Magistrates, Copying fees, Register of material objects, Register of Calendar and Preliminary Register cases, Diary Register, Hearing Book, Register of long pending cases, Register of Court fees / process fees / Memorandums and petitions) – Inquiry into custodial death – Legal Aid and Amicus curiae – Revision cases – High Court appeals – Inspection of Records of Court – Preservation of records – Destruction of case records – Supervision of subordinate Criminal Courts by Sessions Judges and Chief Judicial Magistrates – Inspection of Courts of Executive magistrates on judicial duty

MODULE – 4 : CRIMINAL LAWS (GENERAL & SPECIAL CRIMINAL LAWS)

Unit-I : Basics of Bharathiya Nyaya Sanhita, 2023 (Formerly Indian Penal Code) –

Definitions of Crimes – Offences against women and child – Offences against human body – Offences against property – Offences against state – Offences related to documents and property marks – General Exceptions (Extinguishing the Criminal Liability)

Unit – II : Basics of Various Special Criminal Laws and its litigation (Dishonour of Cheque case (N.I. Act),

Prevention of Corruption Act, POCSO Act, Prevention of Money Laundering Act, National security Act, 1980, National Investigation Agency Act, 2008, Goondas Act 1982)

MODULE – 5 : PROPERTY LAWS AND PRACTICE

Unit-I : Fundamental basics of Transfer of Property Act 1882, Specific Relief Act 1963, Registration Act 1908, Contract Act 1872 and Tamil Nadu Land and Revenue related Legislations

Unit-II : Adjudications related to Properties

Matters and Disputes related to Transfer of Property Act, 1882 (Civil Trial before Competent Civil Courts) - Matters and disputes related to Indian Contract Act, 1872 - Seeking of relief under Specific Relief Act, 1963 before Competent Civil Courts - Matters and disputes related to Registration Act, 1908 and Stamp Act, 1899 - Proceedings before the District Registrar (Registration Department) - Proceeding before the Deputy Inspector General (Registration Department) - Proceedings before the Tahsildar (Revenue Department) - Proceedings before the Revenue Divisional Officer (Revenue Department) - Proceedings before the District Revenue Officer (Revenue Department) - Proceedings before the District Collector (Land Acquisition proceedings) - Proceedings before Rent Court / Rent Tribunal (Tamil Nadu Regulation of Rights and Responsibilities of Landlords and Tenants Act, 2017)

MODULE – 6 : FAMILY DISPUTES OR MATRIMONIAL DISPUTES / PROTECTION OF WOMEN AND CHILD

Unit-I : Basics of Family Court Act 1984 – Restitution of Conjugal Rights – Judicial Separation – Nullity of Marriage – Divorce by Mutual Consent – Grant of Divorce on the ground of cruelty – Grant of Divorce on the grounds of Irretrievable breakdown of marriage – Decree of divorce passed by foreign court – Mediation and Alternative Dispute Redressal (ADR) in matrimonial disputes – Application for Maintenance – alternation in Maintenance allowance – Payment of maintenance allowance during pendency of appeal – Permanent Alimony – Enhancement of Maintenance – Remedy for disposal of joint property of husband and wife – Supreme Court on Live-in-relationship

Unit-II : Fundamentals and basics of Personal Laws including Succession (Hindu, Christian & Muslims), Guardianship and Wards Act, 1890, Domestic Violence Act, Sexual Harassment of Women at workplace, Dowry Prohibition Act

UNIT III : Fundamental and basics of women and child related litigations- POCSO Act

Juvenile justice(care and protection of children) act 2015-Protection children from sexual offense act 2012 (POCSO)- The commissions for protection for child rights act 2005-Sexual harassment of women at work place(prevention prohibition and redressal act 2013)-

Domestic violence act-Hindu adoption and maintenance act-Pre-conception and Pre-Natal diagnostics techniques act 1994(PCPNDT)-Dowry prohibition ACT1961-Prohibition of child marriage act 2006- -The women's and children's institution (licensing act)-The orphanages and other charitable homes(super vision and control) act 1960-The indecent representation of women(prohibition) act 1986-The immoral traffic(prevention) act 1956-The commission of SATI(prevention)act 1987-Guardian and wards act-

MODULE – 7: MOTOR ACCIDENT LAWS AND PRACTICE

Cases related to Motor Accident Claims Tribunal (MACT) and Causing Death / Injury by Rash and Negligent driving of vehicles

MODULE – 8: CONSUMER PROTECTION LAWS AND PRACTICE

Litigation related to Consumer Protection Act filled under various consumer Forums such as, District Consumer Dispute redressal Forum, State Consumer Dispute redressal Forum, National Consumer Dispute redressal Forum and Central Consumer Production Authority

MODULE – 9: CORPORATE LAWS AND PRACTICE

Unit-I : Fundamentals and basics of Company Act, 2013

Unit-II : Fundamentals and basics of Insolvency Bankruptcy code 2016

Unit-III : Fundamentals and basics of competition Act, 2002

Unit-IV : Adjudication before National Company Law Tribunal (NCLT), based on National Company Law Tribunal Rules, 2016)

Unit-V: Adjudication before National Company Law Appellate Tribunal (NCLAT), based on National Company Law Appellate Tribunal Rules, 2016)

MODULE – 10: TAXATION LAWS AND PRACTICE

Unit-I : Basics of Direct Taxes & Indirect Taxes under Indian Constitution

Constitutional basics of Taxation – Annual Financial Statement – Finance Act – Appropriation Act – Consolidated Funds of India -Public Account of India – Comptroller and Auditor General of India – Finance Commission of India – Centre-State Financial Relations under Indian Constitution – GST Council – 101 Constitutional amendment Act 2016.

Unit-II : Tax – related Adjudications

Disputes and matters related to Assessment Officer (Income Tax Act and GST Acts) - Disputes and matters before Commissioner of Income Tax (Appeal) - Disputes and matters before Commissioner of Customs, Excise and Service Tax (Appeal) - Disputes and matters related to Income Tax Appellate Tribunal - Disputes and matters before the Customs, Excise and Service Tax Appellate Tribunal - Writs and Writ Appeal before High Court (Tax matters) - Matters before GST Appellate Tribunal

MODULE – 11: ECONOMIC LAWS AND PRACTICE

Unit-I : Fundamental basics of various Economic Laws such as, Prevention of Money Laundering Act (PMLA) 2002, Benami Transaction Act, 2016, Foreign Exchange Management Act, 1999, Conservation of Foreign Exchange and Prevention of Smuggling Activities Act 1973.

Unit-II: Adjudications related to Economic Laws

Matters and disputes related to Prevention of Money Laundering Act, 2002 - Matters and disputes related to Benami Transaction Act, 2016 - Matters and disputes related to Foreign Exchange Management Act, 1999 - Trials before Special Court (Prevention of Money Laundering Cases)

MODULE – 12 : - BUSINESS LAWS AND PRACTICE

Unit-I : fundamental and basics of Partnership Act 1932, Commercial Courts Act 2015, SARFAESI Act 2002, Trust Act 1882, Societies Registration Act 1860 and Tamil Nadu Registration of Societies Act 1975

Unit-II : Adjudications related to Business legislations

Matters and disputes related to Partnership Act, 1932 - Matters and disputes related to Commercial Courts Act 2015 - Matters and disputes to Securitisation and Reconstruction of Financial Assets and Enforcement of Security Interest Act (SARFAESI) 2002 (Proceedings before Debt Recovery Tribunal and Debt Recovery Appellate Tribunal) - Proceedings and Applications made before the Ministry of Corporate Affairs (Company Act & Limited Liability Partnership Act, 2008) - Matters and disputes related to Indian Trust Act, 1882 - Matters and disputes related to Indian Societies Registration Act, 1860 & Tamil Nadu Registration of Society Act, 1975 - Matters and disputes related to Section 8 of Companies Act - Matters and disputes related to Income Tax Act, provisions related to Non-profit Organizations (Trust, Society & Section 8 Companies) – Tax exemption & deductions.